

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE RELATING TO GENERAL PROVISIONS PERTAINING TO FIRE PROTECTION AND REGULATIONS, AND ADOPTION OF THE INTERNATIONAL FIRE CODE, 2012 EDITION, AND CERTAIN CODES AND PRACTICES PROMULGATED BY THE NATIONAL FIRE PROTECTION ASSOCIATION.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various chapters and sections within Title 8, Health and Safety, of the Cheyenne City Code, relating to general provisions pertaining to fire protection and regulations, and adoption of the International Fire Code, 2012 edition, and certain codes and practices promulgated by the National Fire Protection Association are hereby amended, created, deleted and re-created as set out in this ordinance. Chapters and sections currently existing within Title 8, Health and Safety, not set out or clarified by an *[Editing note: ...]* within this ordinance remain unchanged.

Section 2. That Chapter 8.12, International Fire Code Adopted, is amended as follows:

8.12.010 Purpose – Authority – General provisions.

The purpose of this chapter is to adopt the International Fire Code, ~~2006~~ **2012** Edition, as an enforceable regulation governing the safeguarding of life and property from fire and explosion hazards arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the occupancy of buildings and premises.

8.12.020 International Fire Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Fire Code, ~~2006~~ **2012** Edition, as published by the International Code Council, Inc., including Appendices ~~A through G~~ **A, B, C, D, E, F, G AND I;**

is referred to, adopted and made a part hereof as if fully set out in this chapter.

8.12.030 Amendments.

The International Fire Code adopted in Section 8.12.020 above is amended as follows:

A. Section ~~101.2.1~~ **101.1.** insert: The City of Cheyenne; for [NAME OF JURISDICTION].

~~B. Section 102.1 is deleted and re-created to read as follows:~~

~~102.1 Construction and Design Provisions. The construction and design provisions of this code shall apply to:~~

~~1. Structures, Facilities and Conditions Arising After the Adoption of this Code. It is not the intent of this code to apply any construction and design provisions retro-actively. Existing buildings shall comply with the building code.~~

~~2. Existing structures, facilities and conditions which after being identified constitute a distinct hazard to life and/or property, in the opinion of the fire chief, and with concurrence of the chief building official.~~

B. Section 102.1 is amended by adding subsection 5 as follows:

5. IN MAKING A DETERMINATION WHETHER A PARTICULAR STRUCTURE, FACILITY OR CONDITION CONSTITUTES A DISTINCT HAZARD, THE FIRE CODE OFFICIAL SHALL FOLLOW THE GUIDELINES AND PROCEDURES SPECIFIED FOR SECTION 102.1.4 WHICH APPEAR ON PAGE 1-8 OF THE OFFICIAL COMMENTARY TO THE 2012 EDITION OF THE INTERNATIONAL FIRE CODE.

~~C. Section 102.3 is deleted and re-created to read as follows:~~

~~No change shall be made in the use or occupancy of any structure without approval of the chief building official.~~

~~D~~ C. Section ~~109.3~~ **109.4** is deleted and re-created to read as follows:

[Editing note: remainder of existing city code sub-section D. (re-lettered as C. pursuant to this amending ordinance) is unchanged.]

~~E~~ D. Section 111.4 is deleted and re-created to read as follows:

[Editing note: remainder of existing city code sub-section E. (re-lettered as D.

~~F. Section 603.4 is deleted and re-created to read as follows:~~

~~Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.~~

~~G. Section 607.1 is amended by deleting the first sentence.~~

~~H~~ E. Section 609.2 is amended by the addition of one exception to read as follows:

Exception: Day care facilities that utilize residential stovetops need not provide a Type I or Type II hood, subject to all of the following:

1. The equipment is used for warming or limited cooking only, no frying is permitted and a permanent sign is posted stating "No Cooking Creating Grease Laden Vapors Permitted."; and
2. A ~~"K"~~**2A-10BC** fire extinguisher is placed in the kitchen; and
3. Approval of the exception is provided, in writing, by the city fire code official.

~~I. Section 701.1 is deleted and re-created to read as follows:~~

~~The maintenance of fire resistance rated construction shall comply with the provisions of this chapter. New construction shall comply with the International Building Code.~~

~~J F. Section 903.2.7~~ **903.2.8** is deleted and re-created **AMENDED** to read as follows:

~~903.2.7~~ **903.2.8** Group R. An automatic sprinkler system installed in accordance with Section 903.3 shall be provided throughout all buildings with a Group R fire area.

Exception: Three or more dwelling units in a structure need not be provided with an automatic sprinkler system when all the following provisions are met:

1. Each dwelling unit has its primary exit directly to the exterior of the structure.
2. Each structure does not exceed 2 stories (levels) in height.
3. Each structure is provided with a fire wall complying with Section ~~705~~ **706** that separates not more than 2 dwelling units.

Buildings containing not more than 4 dwelling units, which are not separated by fire walls, shall comply with Section 903.3 subject to all of the following provisions:

1. All sprinkler systems shall comply with a design approved by the ~~€~~ City of Cheyenne ~~¢~~ Fire and ~~¢~~ Rescue Department,.

2. All sprinkler systems shall have an approved back flow preventor and a water control valve installed.

3. The minimum domestic water tap will be 1½ inch for 3 or 4 unit buildings. The fire line may come off the domestic line.

~~4. The Board of Public Utilities shall not require additional taps or fees for buildings constructed under these provisions.~~

~~5.~~ **4.** Properly licensed plumbing contractors will be permitted to install residential sprinkler systems in structures containing not more than 4 dwelling units.

Buildings containing 5 or more dwelling units, which are not separated by fire walls, shall be provided with an automatic sprinkler system installed in accordance with Section 903.3. In either case Section 508.5.1 shall apply, with a maximum of 600 foot of hose lay.

~~K. Section 903.6 is deleted in its entirety.~~

~~L. Section 905.11 is deleted in its entirety.~~

~~M. Section 907.3 is deleted in its entirety.~~

~~N. Section 1027 is deleted in its entirety.~~

~~O. G.~~ Section ~~3204.3.1.1~~ **5504.3.1.1.3** is amended to read as follows:

[Editing note: remainder of existing city code sub-section O. (re-lettered as G. pursuant to this amending ordinance) is unchanged.]

H. SECTION 5608.10, DISPOSAL, IS DELETED AND RE-CREATED AS FOLLOWS:

ANY SHELLS FOUND DURING THE INSPECTION REQUIRED IN SECTION 3308.9 SHALL NOT BE HANDLED UNTIL AT LEAST 15 MINUTES HAVE ELAPSED FROM THE TIME THE SHELLS WERE FIRED. THE DISPOSAL INSTRUCTIONS OF THE MANUFACTURER AS PROVIDED BY THE FIREWORKS SUPPLIER SHALL BE FOLLOWED IN DISPOSING OF THE FIREWORKS IN ACCORDANCE WITH SECTION 3304.10. IF NONE ARE PROVIDED THE FIREWORKS SHALL THEN BE DOUSED WITH WATER AND ALLOWED TO REMAIN FOR AT LEAST 5 ADDITIONAL MINUTES BEFORE BEING PLACED IN A PLASTIC BUCKET OR FIBERBOARD BOX.

~~P I.~~ Section ~~3404.2.9.5.1~~ **5704.2.9.6.1** is amended to read as follows:

[Editing note: remainder of existing city code sub-section P. (re-lettered as I. pursuant to this amending ordinance) is unchanged.]

~~Q J.~~ Section ~~3406.2.4.4~~ **5706.2.4.4** is amended to read as follows:

[Editing note: remainder of existing city code sub-section Q. (re-lettered as J. pursuant to this amending ordinance) is unchanged.]

~~R K.~~ Section ~~3804.1~~ **6104.1** is amended to read as follows:

[Editing note: remainder of existing city code sub-section R. (re-lettered as K. pursuant to this amending ordinance) is unchanged.]

~~S L.~~ Section ~~3804.2~~ **6104.2** is amended to read as follows:

Locations Where Above-Ground Tanks are Prohibited. The storage of liquefied petroleum gas exceeding 100 pounds water weight **A WATER CAPACITY OF 125 GALLONS** is restricted in residential areas.

Section 3. That Chapter 8.16, Fire Protection Generally, is amended as follows:

8.16.030 ~~Written warning required on unvented fuel-burning room heaters.~~

~~A. All persons who sell, or offer for sale, an unvented fuel burning room heater within the city shall attach the following written warning in a conspicuous place on all unvented fuel burning room heaters and their packaging, sold or offered for sale:~~

~~WARNING~~

~~The laws of the city of Cheyenne prohibit the installation or use of this appliance in any building, whether new or as a replacement installation.~~

~~PENALTY~~

~~Maximum fine of seven hundred fifty dollars (\$750.00) or six (6) months in jail, or both.~~

~~B. For purposes of this section, "unvented fuel burning room heater" means any heating appliance, either wick, wickless or pot burner type, which uses oil, gas or kerosene for fuel, is either stationary or portable, and the products of combustion of which are not directly conducted to the outside of the building via a chimney connector pipe.~~

~~C. Exceptions. The warning prohibition in subsection A of this section does not apply to the following:~~

~~1. Listed or approved unvented overhead room heaters which meet the installation requirements of Section 807(c) of the Uniform Mechanical Code, 1997 Edition; or~~

~~2. Temporary use in buildings while under construction.~~

Section 4. That this ordinance shall be in full force and effect upon approval and publication but not sooner than November 1, 2013.

FIRST READING

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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